

Dispute Chamber

Decision on the merits 165/2023 of December 11, 2023

File number: DOS-2022-02499

Subject: Potential infringement related to personal data concerning a registration system

The Dispute Chamber of the Data Protection Authority, composed of Mr. Hielke Hijmans, chair, and Messrs. Jelle Stassijns and Frank De Smet, members;

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter GDPR;

Considering the Act of December 3, 2017, establishing the Data Protection Authority, hereinafter WOG;

Considering the internal rules of procedure, as approved by the Chamber of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents of the file;

Has made the following decision regarding:

The respondent:

City of Antwerp, with registered office at 2000 Antwerp, Grote Markt 1, with enterprise number 0207.500.123, hereinafter “the respondent.”

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I. Facts and procedure

1.

The central registration system MeldJeAan (hereinafter: MeldJeAan) has been used for several years in various cities in the context of school allocation to achieve a greater social mix within schools.

2.

To this end, parents and, where applicable, guardians were required to provide the following personal data: identification data (name, address, date of birth, telephone number of both parents/guardians and children), electronic identification data (email addresses of both parents/guardians and children), personal characteristics (age, gender of children), education and training (mother), national number (the national register number of the child), whether there are already siblings of the child present in a particular school in that city, whether the parents are staff members of a school where they are registering, whether the family received a school allowance in the current or previous school year, the child's spoken language, and any report on special education.

In addition, other personal data were processed within the application, namely indicators regarding students: home language, education level of the mother, neighborhood indicator, school allowance, and preferences for a particular school. Based on these personal preferences and the other data, children were assigned to a school. Subsequently, lists were drawn up per school of the children who had registered for that school. By logging into the back office of “MeldJeAan,” a staff member for their school can download a list with all personal data of the parents and their children who had registered at that school. Due to a possible flaw in the online application MeldJeAan as used for secondary education in Ghent, it appeared that the URL with the link to the download list was also directly accessible without logging into the back office. Each secondary school in the system receives a unique ID of 30 characters, which is included in the URL, allowing anyone with that unique ID to download the list with personal data of the parents and their child who had registered at the school linked to the unique ID without first logging in. At least one list was downloaded in this manner. The method of downloading was also reported to the press, which subsequently downloaded a list themselves and published it, albeit pseudonymized.

3.

This online application MeldJeAan was also used in, among others, Antwerp, concerning primary education. The GBA has not received any notification of a data breach related to the application due to

the

1 No logs are kept of when or who downloads lists as this was not included in the program specification. See Annex 1, notification form, point 4: prevention and management of the data breach.

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data controllers in Antwerp although the security risk also existed in relation to them.

4.

Given the above, the Executive Committee of the Data Protection Authority (hereinafter: “DPA”) decided on June 20, 2022, to initiate an inspection service based on Article 63, 1° WOG due to a practice that may lead to a violation of the fundamental principles of personal data protection.

5.

On October 10, 2022, the investigation by the inspection service is completed, the report is added to the file, and the file is submitted by the inspector-general to the Chair of the Disputes Chamber (Article 91, § 1 and § 2 WOG). The report contains findings regarding the subject of the decision of the executive committee and concludes that there is a violation of:

1. Article 5.1.f) and 5.2 of the GDPR, Article 24.1 of the GDPR, Article 25.1 of the GDPR, and Article 32.1 and 32.2 of the GDPR;

2. Article 35.1, 35.2, 35.3, and 35.7 of the GDPR; and

3. Article 38.1 and Article 39 of the GDPR.

The report also contains additional findings in light of Article 72 WOG. The inspection service finds, in broad terms, that there is a violation of:

4. Article 30.1 of the GDPR.

6.

On October 28, 2022, the Disputes Chamber decides based on Article 95, § 1, 1° and Article 98 WOG that the file is ready for substantive treatment.

7.

On October 28, 2022, the respondent is notified by registered mail of the provisions as mentioned in Article 95, § 2, as well as those in Article 98 WOG. She is also informed under Article 99 WOG of the deadline to submit her defenses.

The deadline for receipt of the respondent's reply is set for December 9, 2022.

8.

On October 28, 2022, the respondent electronically accepts all communication regarding the case.

9.

On November 2, 2022, the respondent requests a copy of the file (Art. 95, § 2, 3° WOG), which is provided to her on November 9, 2022.

10.

On December 9, 2022, the Disputes Chamber receives the reply from the respondent.

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11.

On May 8, 2023, the respondent is informed that the hearing will take place on June 23, 2023.

12.

On June 23, 2023, the respondent is heard by the Disputes Chamber.

13.

On June 28, 2023, the minutes of the hearing are presented to the respondent.

14.

On July 4, 2023, the Disputes Chamber receives some comments from the respondent regarding the minutes, which it decides to include in its deliberation.

II. Reasoning

II.1. Identity of the Data Controller

II.1.1. Findings of the Inspection Service

15.

The inspection service identifies the respondent as the data controller regarding the processing of personal data in the context of the online registration system MeldJeAan. The inspection report refers,

on the one hand, to the processing agreement with Z regarding the development of the online application MeldJeAan in which the respondent is named as the data controller, and on the other hand, to the document titled “measures taken following the data breach MeldJeAan” that the respondent has submitted to the inspection service.

II.1.2. Position of the Respondent

16.

The respondent argued in her conclusions that she should not be considered the data controller for the processing of personal data via MeldJeAan. In this context, the respondent referred to the decree of February 25, 1997, concerning primary education. According to this decree, the Local Education Platform Antwerp (hereinafter: LOP Antwerp) has been required since 2021 to organize the registration system in primary education in Antwerp. Consequently, the LOP Antwerp should also be regarded as the data controller in the context of MeldJeAan, the respondent stated.

17.

To support this assertion, the respondent also referred to the letter from the Flemish Supervisory Commission (VTC) dated October 25, 2022, in which it appears that the LOP Antwerp is considered the data controller regarding the processing of personal data in the context of MeldJeAan.

18.

However, during the hearing, the respondent took a different position. First, she explains the evolution of the role of data controller and processor. Up until the end of

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2022

the

defendant

was

of the opinion that the LOP Antwerp was the data controller in the context of MeldJeAan, given the aforementioned statutory obligation of the LOP Antwerp to organize the registration system. The documentation provided to the Inspection Service in August 2022 during the investigation in this matter was prepared based on the advice received by the defendant from the VTC, namely that the LOP should be considered as the data controller. In January 2023, the Agency for Educational Services of the Flemish Government (hereinafter: AGODI) announced its position regarding who assumes the role of data controller in this matter. This position states that starting from the 2023-2024 school year, the schools should be regarded as joint data controllers since the LOP Antwerp itself is not a legal entity but consists of the involved school boards. Given that the registration system aims for a fairer and more transparent way of processing enrollments and considering, among other things, the limited operational budgets of the LOP Antwerp, the defendant decided to allocate financial resources and thus assume joint data controller responsibility together with the school boards. This position was taken subject to the outcome of the Flemish policy discussion. As a result of this position, the defendant adjusted her approach to ensure compliance with the GDPR.

II.1.3. Assessment of the Disputes Chamber

19. The Disputes Chamber notes that over the past years, various positions have been taken and advice provided by multiple authorities regarding the data controller responsibility concerning MeldJeAan, but the most recent position of the defendant is that she considers herself as a joint data controller.

20. In this context, the Disputes Chamber refers to Article 26 GDPR. This article states that when two or more data controllers jointly determine the purposes and means of processing, they are joint data controllers. Two important elements from the cited Article 26 GDPR are on the one hand ‘determining the purpose and means of processing’ and on the other hand ‘jointly’.

21. Regarding the determination of the purpose and means of processing, reference can be made to Article 4.7 GDPR, which defines a data controller as follows: the “natural person or legal entity, public authority, agency or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data.” Just as with the concept

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Data Controller

Requires
the
Analysis
of
a
Joint

Data Controller a factual assessment.³

22.

Regarding the 'joint' nature, the overarching criterion for the existence of joint responsibility for processing is the joint participation of two or more entities in determining the purpose and means of a processing activity. Joint participation can take the form of a joint decision by two or more entities or result from converging decisions of two or more entities, when the decisions complement each other and are necessary for the processing to occur in such a way that it has a tangible effect on the determination of the purpose and means of the processing. It is important that the processing would not be possible without the participation of both parties, in the sense that the processing by each party is inseparable, i.e., inextricably linked to that of the other.⁴

23.

The Dispute Chamber establishes that the purpose of the processing of personal data via MeldJeAan is fourfold. First, to ensure the free school choice of all parents and students, by avoiding camping lines at the school gate, objectifying the registrations in schools with capacity pressure, establishing a central timeline, and uniformity for the parents; second, to realize optimal learning and development opportunities for all students and, as far as possible, in a school in their neighborhood for primary education; third, to promote social cohesion; and fourth, to avoid exclusion, segregation, and discrimination. These objectives were determined by AGODI, and the LOP Antwerp is legally⁵ required to implement them within its operational area. AGODI states on its own website that the school boards and AGODI are to be considered as joint data controllers: “[f]or the registration system of the Flemish government, it applies that the school boards and AGODI are joint data controllers. This means that the school boards and AGODI together determine the purpose and means for the processing of

3 EDPB Guidelines 07/2020 on the concepts of “data controller” and “processor” in the GDPR, July 7, 2021,

https://edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_nl.pdf, paragraph 52.

4 EDPB Guidelines 07/2020 on the concepts of “data controller” and “processor” in the GDPR, July 7, 2021,

https://edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_nl.pdf, paragraph 58 et seq.

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Decree

on

Primary

Education

of

February 25, 1997,

BS

April 17, 1997.

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<https://codex.vlaanderen.be/Portals/Codex/documenten/1005384.html>

Article 37vicies semel. (01/09/2022- ...)

Notwithstanding the first paragraph, the school boards that have a school, excluding schools for special education, within the operational area of the LOP Antwerp, Brussels-Capital, or Ghent must establish a registration procedure that applies to all schools, excluding schools for special education, located within that respective operational area.

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personal data determination. Both are responsible for the proper maintenance and processing of personal data in the context of the General Data Regulation.”⁶

24.

The respondent explains that the LOP Antwerp, however, does not have the necessary resources to finance this registration system. Consequently, the respondent has made the decision to determine and allocate the necessary financial resources to the LOP Antwerp to fulfill this statutory obligation.

25.

The Dispute Chamber notes that the respondent has made the decision to determine the necessary financial resources on the one hand and to allocate these financial resources in the context of MeldJeAan on the other hand. In addition, the respondent has concluded the processing agreement with Z, in which the scope of the processing is determined by the respondent as the data controller in relation to the processor. In light of the above, the Dispute Chamber concludes that the respondent, together with AGODI and the school boards, is a joint data controller since the decisions of AGODI and the LOP Antwerp regarding the organization of the central registration system and the decisions of the respondent to provide the necessary financial resources and to conclude the processing agreement are converging decisions with a tangible effect on the determination of the purpose and means of the processing and that complement each other and are necessary for the processing to take place in such a manner.

26.

In light of the above, the respondent should be considered a joint data controller within the meaning of Article 26 GDPR, which means that it must comply with the obligations of joint data controllers as stipulated in the GDPR.

II.2. Article 5.1.f), 5.2, Article 24.1, Article 25.1, and Article 32.1 and 32.2 GDPR

II.2.1. Findings in the Inspection Report

27.

During the inspection investigation, the Inspection Service inquired about the security of the processing of personal data in the context of the online registration system “MeldJeAan.” In response to these questions, the respondent referred to the following documents: the processing agreement with Z on the one hand and the overview of the measures taken in response to the data breach MeldJeAan on the other hand.

28.

Firstly, the Inspection Service notes that the aforementioned processing agreement with Z does not contain signatures from the respondent and the processor.

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<https://onderwijs.vlaanderen.be/nl/directies-administraties-en-besturen/leerlingenadministratie-basis-en-secundair-onderwijs/leerlingen-inschrijven-in-het-basis-en-secundair-onderwijs/leerlingen-inschrijven-in-het-gewoon-onderwijs/inschrijven-en-aanmelden/aanmeldingssysteem-gewoon>

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29.

Secondly, the Inspection Service refers to the document titled “Measures Taken Regarding the Data Breach MeldJeAan” from the respondent, which includes a list of three categories of measures: software, access, and environment. However, the aforementioned document does not specify when exactly these measures were discussed, approved, and implemented, and which managers and employees of the respondent and the processor Z were involved.

30. Finally, the Inspection Service notes that it is unclear how and when the data protection officer of the respondent was involved in the context of the security of the processing of personal data in the context of MeldJeAan.

31.

Based on the above findings, the Inspection Service concludes that there is a violation of Article 5.1.f), 5.2, 24.1, 25.1, 32.1, and 32.2 GDPR.

II.2.2. Position of the Respondent

32.

The respondent disputes the findings of the Inspection Service. Regarding the findings about the lack of signatures in the processing agreement, the respondent argues that according to Article 28.3 GDPR, it suffices that the processing by a processor is governed by an agreement or other legal act under Union law or national law that binds the processor to the data controller. The respondent states that there is no dispute between the parties to the processing agreement regarding the binding nature of this processing agreement. Moreover, the respondent points out that the contractual framework between the parties is currently being revised, so the processing agreement submitted to the Inspection Service will soon be outdated. The new signed agreement can be submitted to the Dispute Chamber if desired.

33. The respondent then refers to the finding of the Inspection Service regarding how and when compliance with the processing agreement between the respondent and the processor is monitored by her. In this context, the respondent states that the GDPR does not provide anywhere, including as part of the accountability obligation, for a requirement to systematically monitor compliance with every processing agreement, at least not when there is no indication or report of any risk.

34. Finally, the respondent formulates a response regarding the finding of the Inspection Service about how and when the data protection officer was involved in the context of the security of the processing of personal data in the context of MeldJeAan. The respondent clarifies that the data protection officer was initially not involved in MeldJeAan since the establishment of this platform occurred before the GDPR came into effect.

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Meanwhile, the data protection officer was indeed engaged and involved in (among other things) the data protection impact assessment that was carried out.

II.2.3. Assessment by the Dispute Chamber

35. Article 5.1.f) of the GDPR stipulates that “[personal data] shall be processed in a manner that ensures appropriate security, including protection against unauthorized or unlawful processing and against accidental loss, destruction or damage, by taking appropriate technical or organizational measures.”

36. In further elaboration of Article 5.1.f) GDPR, Article 32.1 GDPR states that the respondent, as the data controller, must implement appropriate technical and organizational measures to ensure a level of security appropriate to the risk. This must take into account the state of the art, the costs of implementation, as well as the nature, scope, context, processing purposes, and the likelihood and severity of the various risks to the rights and freedoms of individuals.

37. Article 32.2 of the GDPR provides that, in assessing the appropriate level of security, account must be taken of the processing risks, particularly as a result of the destruction, loss, alteration, or unauthorized disclosure of or unauthorized access to transmitted, stored, or otherwise processed data, whether accidentally or unlawfully.

38. The Dispute Chamber points out that the accountability obligation under Article 5.2 GDPR, Article 24.1, and Article 25.1 GDPR entails that the data controller has the obligation, on the one hand, to take proactive measures to ensure compliance with the provisions of the GDPR and, on the other hand, to be able to demonstrate that such measures have been taken.

39. In short: the respondent has the obligation to take appropriate technical and organizational measures to ensure an appropriate level of security and to be able to demonstrate this.

40. Regarding the aforementioned accountability obligation, the Dispute Chamber notes that the Inspection Service requested the following from the respondent:

“A copy of the documents from [respondent] regarding the measures and decisions taken for the security of the processing of personal data in the context of the online registration system ‘Sign Up’ and the accountability thereof in accordance with Article 1, paragraph 1, f) and paragraph 2 of the GDPR, Article 24, paragraph 1 of the GDPR, Article 25, paragraph 1 of the GDPR, and Article 32 of the GDPR. Please also provide a copy of the information and advice that the data protection officer of [respondent] has provided in this regard and give a documented explanation of their involvement in this context in accordance with Article 38, paragraph 1 read in conjunction with Article 39, paragraph 1 of the GDPR.”

41. The Dispute Chamber finds that the respondent does not submit any documents or otherwise demonstrate how and when compliance with the processor agreement was monitored, neither at the start nor during the execution of the processor agreement. However, Article 28, paragraph 1 stipulates that when processing is carried out on behalf of a data controller, this data controller may only engage processors who provide sufficient guarantees regarding the implementation of appropriate technical and organizational measures so that the processing meets the requirements of the GDPR. The data controller can verify this by, for example, requesting a description of the security measures of the processor and by assessing the processor's working methods, with the involvement of the data protection officer. In the context of the aforementioned accountability obligation, it is important to document these assessments properly.

42. The Dispute Chamber then finds that the document "Measures Taken Regarding the Data Breach MeldJeAan" provides a series of measures, along with a clarification of the purpose of each measure and the status of implementation. An additional document indicates when the meetings regarding these measures took place and who participated in them. The Dispute Chamber notes that this document is vague regarding the approval of these measures and the further timing of the implementation of certain measures and follow-up of the already implemented/to be implemented security measures. Consequently, the respondent does not demonstrate with these documents that account was taken of the state of the art, the costs of implementation, the nature, scope, and context of the processing, nor does it demonstrate that these measures are sufficiently aligned with the security risk and take into account the processing risks, as prescribed by Articles 32.1 and 32.2 GDPR.

43. Regarding the Inspection Service's finding concerning the involvement of the data protection officer, the Dispute Chamber finds that the respondent does not provide documentation, such as advice, indicating that the data protection officer was consulted in the context of the security of MeldJeAan. The respondent argues that MeldJeAan was established before the GDPR came into effect. However, it is the responsibility of each data controller, after the GDPR comes into effect, to proactively verify whether the processing of personal data complies with the requirements of the GDPR and to make any necessary adjustments and document this accordingly.

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44. In light of the above, the Dispute Chamber finds that there is a violation of Article 5.1.f), Article 32.1 and 32.2 in conjunction with Article 5.2, Article 24.1, and Article 25.1 of the GDPR, namely the accountability obligation regarding the security of the processing of personal data in the context of MeldJeAan.

45. The Inspection Service also established a violation of the aforementioned articles given the fact that the processing agreement between the defendant and Z was not signed. The Dispute Chamber points out that the processing agreement was executed by the parties as agreed, regardless of the signature. The Dispute Chamber rules that the lack of a signature does not constitute a violation of Article 5.1.f), Article 32.1 and 32.2 in conjunction with Article 5.2, Article 24.1, and Article 25.1 of the GDPR.

46. As far as necessary, the Dispute Chamber reminds that, although Article 5.1 and 5.2 of the GDPR are closely linked, a breach of the accountability obligation under Article 5.2 of the GDPR does not automatically imply a breach of Article 5.1 of the GDPR. The accountability obligation concerns the formal externalization to demonstrate compliance with the substantive fundamental principles of the GDPR through documents. The Dispute Chamber notes that the Inspection Report does not contain elements indicating a breach concerning specific processing of personal data on the part of the defendant.

II.3. Article 35.1, 35.2, 35.3, and 35.7 of the GDPR

II.3.1. Findings of the Inspection Service

47. During the inspection investigation, the Inspection Service asked the defendant whether or not a data protection impact assessment (hereinafter: DPIA) was conducted for the processing activities related to MeldJeAan.

48. As indicated above in point 27 et seq., based on the responses provided by the defendant, the Inspection Service concludes that the defendant cannot be considered solely as a processor, but rather as a data controller, given the processing agreement with Z in which the defendant is

designated as a data controller and the measures taken following the data breach. Therefore, the obligation to conduct a DPIA rests upon it.

49. The Inspection Service points out that in this case there is an evaluation or scoring in the sense of Article 35.3.a) of the GDPR, namely characteristics of professional performance, economic situation, health, personal preferences or interests, reliability or behavior, location or movements of the data subject. In addition, data concerning vulnerable data subjects, namely children, are also processed.

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50. The Inspection Service then refers to the Guidelines for Data Protection Impact Assessments of WP29, which state that the requirement to conduct a DPIA applies to existing processing activities that are likely to result in a high risk to the rights and freedoms of natural persons and for which the risks have changed, taking into account the nature, scope, context, and purposes of the processing.

51. In light of the above, the Inspection Service concludes that the defendant, as a data controller for the processing of personal data in the context of MeldJeAan, should have conducted a DPIA. The fact that this has not occurred constitutes, according to the Inspection Report, a violation of Articles 35.1, 35.2, 35.3, and 35.7 of the GDPR.

II.3.2. Position of the Defendant

52. In its conclusions, the defendant argued that it should not be considered a data controller.

However, as previously stated, the defendant took the position during the hearing that it acts together with AGODI and the local school boards as joint data controllers for the processing of personal data in the context of MeldJeAan.

53. In accordance with this position, the defendant has taken various measures and actions to act in accordance with the GDPR. For instance, it has prepared a DPIA, which received a favorable opinion from the data protection officer. The DPIA was then submitted to the school boards as joint data controllers. No comments were made on the DPIA by the school boards, thus it is considered final. The defendant subsequently submitted this DPIA to the Dispute Chamber.

II.3.3. Assessment by the Dispute Chamber

54. The Dispute Chamber refers to section II.1.3 where the defendant was qualified as a joint data controller. Article 26.1 of the GDPR stipulates that joint data controllers shall transparently determine and agree upon their respective responsibilities for compliance with the obligations under the regulation. Joint data controllers must therefore determine "who does what" by mutually deciding who will carry out which tasks to ensure that the processing complies with the applicable regulations.

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obligations under the GDPR concerning the involved joint processing. One of these obligations that must be included in this task allocation, if applicable, is the preparation of a DPIA (Article 35 GDPR).

55. In accordance with the risk-based approach established in the GDPR, a DPIA is not mandatory for every processing activity. A DPIA is only required if the processing "is likely to result in a high risk to the rights and freedoms of natural persons" (Article 35, paragraph 1 GDPR). When joint controllers are involved in the processing, they must precisely determine their respective obligations. The DPIA must describe which party is responsible for the various measures designed to address risks and protect the rights and freedoms of the data subjects. Each controller must outline what their needs are and must share useful information without disclosing secrets (for example, protection of trade secrets, intellectual property, confidential business information) or revealing vulnerabilities.

56. Although a data protection impact assessment may be required in other circumstances, Article 35.3 GDPR provides some examples of when processing "is likely to result in a high risk":

"(a) a systematic and comprehensive assessment of personal aspects of natural persons, based on automated processing, including profiling, and on which decisions are based that produce legal effects concerning the natural person or similarly significantly affect the natural person;

(b) large-scale processing of special categories of personal data as referred to in Article 9, paragraph 1, or of data concerning criminal convictions and offenses as referred to in Article 10; or

(c) systematic and large-scale monitoring of publicly accessible areas."

57.

When assessing whether a DPIA is required for processing based on their inherent high risk, nine

criteria must be taken into account, namely: (1) evaluation or scoring, (2) automated decision-making with legal effects or similarly significant effects, (3) systematic monitoring, (4) sensitive data or data of a highly personal nature, (5) data processed on a large scale, (6) matching or combining datasets, (7) data concerning vulnerable data subjects, (8) innovative use or innovative application of new technological or organizational measures.

9 EDPB Guidelines 07/2020 on the concepts of "controller" and "processor" in the GDPR, July 7, 2021, https://edpb.europa.eu/system/files/2023-10/edpb_guidelines_202007_controllerprocessor_final_en.pdf, paragraph 58 et seq.

10 WP29, Guidelines on Data Protection Impact Assessments and determining whether processing "is likely to result in a high risk" under Regulation 2016/679, p.9.

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solutions and (9) when, as a result of the processing itself, "data subjects [...] cannot exercise a right or cannot invoke a service or a contract" (Article 22 and Recital 91).

58. The WP29 states in its guidelines on Data Protection Impact Assessments (DPIAs) that in most cases a data controller can assume that a DPIA must be conducted for processing that meets two of the preceding criteria.¹¹ The Dispute Chamber establishes that this is the case for MeldJeAan. The Dispute Chamber recalls that the following personal data were processed: identification data (name, address, date of birth, telephone number of both parents and children), electronic identification data (email addresses of both parents and children), personal characteristics (age, gender of children), education and training (mother), national number (the national register number of the child), the fact whether there are already siblings of the child present in a certain school in Antwerp, whether the parents are staff members of the school to which they are applying, whether the family received a school allowance in the current school year or the previous school year, and the child's spoken language. Additionally, the following personal data were also processed within the application: various indicators regarding students such as home language, mother's education level, neighborhood indicator, and school allowance, as well as preferences for a specific school. There is therefore an evaluation or scoring assignment including profiling and prediction, specifically of "characteristics concerning professional performance, economic situation, health, personal preferences or interests, reliability or behavior, location or movements of the data subject" (Recitals 71 and 91 GDPR).

59. These data are also processed on a large scale¹², as the personal data of thousands of children in Antwerp and their parents are processed in the context of school allocation. These children are vulnerable data subjects (Recital 75 GDPR). Additionally, sensitive data are processed, such as the national register number of the registered children and whether a student should be considered an indicator student¹³ or not.

11 WP29, Guidelines on Data Protection Impact Assessments and determining whether processing "is likely to result in a high risk" within the meaning of Regulation 2016/679, p.12.

12 WP29, Guidelines on Data Protection Impact Assessments and determining whether processing "is likely to result in a high risk" within the meaning of Regulation 2016/679, p.12.

13 <https://meldjeaansecundair.gent.be/faq>: An indicator student is a student whose:

- Mother does not have a secondary education diploma or a certificate of completion of the second year of the third stage of secondary education (or equivalent); and/or
- The family receives a school allowance in the current school year or the previous school year.

The other children are non-indicator students.

With a short questionnaire, we check whether a child is an indicator student or a non-indicator student.

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60. In light of the above, the Dispute Chamber is of the opinion that a DPIA should have been prepared for the processing of personal data in the context of MeldJeAan.

61. Article 35.7 GDPR specifies what a DPIA must at least contain:

- a) a systematic description of the intended processing operations and the purposes of the processing, including, where applicable, the legitimate interests pursued by the data controller;
- b) an assessment of the necessity and proportionality of the processing in relation to the purposes;

c) an assessment of the risks referred to in paragraph 1 for the rights and freedoms of data subjects; and
d) the intended measures to address the risks, including safeguards, security measures, and mechanisms to ensure the protection of personal data and to demonstrate compliance with this Regulation, taking into account the rights and legitimate interests of the data subjects and other persons concerned.

62. The respondent submitted the DPIA it prepared regarding the processing of personal data in the context of MeldJeAan on December 9, 2022. The Dispute Chamber notes that the DPIA designates the respondent as the processor, which does not align with the position set forth by the respondent during the hearing.

63. The data controller must also seek the advice of the data protection officer in the DPIA, if one has been appointed (Article 35.2 GDPR). The respondent also submits the positive advice of the data protection officer regarding the DPIA.

64. The Dispute Chamber notes that the registration system was already in place before the GDPR came into effect and that various (sometimes contradictory) opinions regarding the data processing responsibility were provided by, among others, VTC and AGODI. However, this does not mean that the obligations arising from the GDPR should not be complied with. As soon as the respondent decided to allocate funding to the LOP Antwerp to fulfill its statutory obligations, the respondent should have evaluated whether it should, in fact, be considered a (joint) data controller and whether it complied with all obligations arising from this qualification, such as preparing a DPIA.

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65. The Dispute Chamber notes that the respondent does not comply with the above provisions as the GEB still designates the respondent as a processor. The Dispute Chamber points out that the GEB must be brought into compliance with the above provisions of Article 35 GDPR, also considering the status of joint data controller of the respondent. Consequently, the Dispute Chamber also finds that there is a violation of Articles 35.1, 35.2, 35.3, and 35.7 GDPR.

II.4. Article 38.1 and Article 39 GDPR

II.4.1. Findings of the Inspection Service

66. During the investigation, the Inspection Service requested the respondent to provide copies of the information and advice given by the data protection officer in the context of (i) the security of the processing of personal data, (ii) the register of processing activities, and (iii) the data protection impact assessment.

67. The respondent answered during the investigation that the application MeldJeAan has been in use since 2014. Since this predates the entry into force of the GDPR, no advice was requested from the data protection officer at that time. The processing was included in the register of processing activities, and the data protection officer was informed about the data breach in Ghent and the steps taken as a result. At the time of writing this response, a GEB was being created on which the data protection officer would provide advice.

68. Based on the above response from the respondent, the Inspection Service finds that the respondent does not demonstrate that the data protection officer was effectively and timely involved in:

- the security of the processing of personal data in the context of MeldJeAan;
- the register of processing activities; and
- the assessment of the necessity of and, where applicable, the execution of a data protection impact assessment.

II.4.2. Position of the Respondent

69. In its conclusions, the respondent argues that the data protection officer was initially not involved in MeldJeAan since the establishment of this platform predates the entry into force of the GDPR, and therefore there was no data protection officer and no obligation to involve one.

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Additionally, the respondent reiterates in its conclusions that the processing was included in the register of processing activities, that the officer was informed about the data breach in Ghent, and that

a new GEB is in the making that will be submitted for advice to the data protection officer;

II.4.3. Assessment by the Dispute Chamber

70. It is important to note that the MeldJeAan platform dates from before the entry into force of the GDPR. Since May 25, 2018, the GDPR has been applicable, and the data controller should therefore have proactively checked whether it complied with the requirements of the GDPR, rather than adopting a wait-and-see attitude. As soon as the respondent made the decision to grant funding to LOP Antwerp to fulfill its statutory obligations, the respondent should have evaluated whether it should, in fact, be considered a data controller and whether it complied with all obligations arising from this qualification.

71. These obligations included, among others, the provisions regarding the position and tasks of the data protection officer as described in Articles 38 and 39.1 of the GDPR. The GDPR recognizes that the data protection officer is a key figure concerning the protection of personal data, whose appointment, position, and tasks are subject to rules. These rules help the data controller to comply with its obligations under the GDPR, but also assist the data protection officer in properly carrying out their tasks.

72. The Dispute Chamber reminds that Article 38.1 GDPR prescribes that the data controller ensures that the data protection officer is involved in a timely and proper manner in all matters related to the protection of personal data.

73. Based on Article 39.1 GDPR, the data protection officer must (a) inform and advise the data controller about its obligations under the GDPR and other Union or Member State data protection provisions, and (b) monitor compliance with the GDPR, other Union or Member State data protection provisions, and the policies of the data controller or processor regarding the protection of personal data, including the allocation of responsibilities, awareness-raising and training of staff involved in processing, and relevant audits.

74. The documents from the respondent do not indicate that the data protection officer was involved in the obligations under Articles 32.1 and 32.2 (see section II.2). The officer

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for data protection was indeed involved after there was discussion about a potential incident with MeldJeAan concerning secondary education in Ghent.

75.

The respondent also submits the positive opinion regarding the aforementioned GEB to the Dispute Chamber, from which it appears that since the qualification as joint data controller, the data protection officer has been involved in the processing of personal data related to MeldJeAan. The Dispute Chamber rules that there has been a historical violation of Article 38.1 and Article 39.1 GDPR, but that the respondent has since taken sufficient steps regarding the tasks, role, and position of the data protection officer.

II.5. Article 30.1 GDPR

II.5.1. Findings in the Inspection Report

76.

The Inspection Service finds regarding the register of processing activities of the respondent that it does not meet the minimum requirements as imposed by Article 30.1 GDPR. Specifically, the Inspection Service identifies the following violations in this regard:

- The description of the categories of data subjects and the categories of personal data is incomplete (Article 30.1.c) GDPR) as in the tab "Export processing register" of the register of processing activities of the respondent, the categories of data subjects and personal data are only briefly listed instead of being described. This is the case for the columns "categories of data subjects (whose personal data is being processed?)", "data categories: basic data" and "data categories: sensitive data." It is therefore unclear what is meant precisely;
- The respondent does not demonstrate that its register of processing activities is current. The Inspection Service refers in this context to the fact that the respondent mentions "see export processing register (date: 30/08/2022)" while the register was provided to the Inspection Service via email on 19/09/2022. Consequently, the Inspection Service received the register of processing

activities from the respondent on 19/09/2022, which was last updated on 30/08/2022.

II.5.2. Position of the Respondent

77.

The respondent argues that the GDPR states that the data controller and processor are required to (i) maintain a register to demonstrate compliance with the regulation and (ii) cooperate with the supervisory authority and provide this register upon request. Furthermore, the GDPR does not provide further clarification regarding the specification, design, and/or content of a register of processing activities.

78.

Consequently, the respondent states that the GDPR does not specify to what level the entries in the register of processing activities must be described. The GDPR allows the data controller, i.e., the respondent, considerable freedom in this regard, provided that the register (i) makes sufficiently clear which processing activities are being carried out by stating a number of mandatory elements and (ii) is structured in such a way that the GBA can carry out checks on the (non-)compliance with the GDPR based on it. The respondent believes that the register is indeed detailed enough that there is little more that can be described/clarified regarding the categories of data subjects and personal data. All terms used, especially when read in conjunction with all other mentioned categories, are sufficiently clear regarding who processes which personal data.

79.

Regarding the current status of the register, the respondent confirms that the export provided to the Inspection Service indeed dated from August 30, 2022, despite being submitted on September 19, 2022. After all, there was no request for an export that should not exceed a certain age, and moreover, this was indeed the current version of the register, in the absence of a need for adjustment during the period from August 30, 2022, to September 19, 2022.

II.5.3. Assessment by the Dispute Chamber

80. Pursuant to Article 30 GDPR, each data controller must maintain a register of the processing activities carried out under its responsibility. Article 30.1.a) to g) GDPR stipulates that, with regard to the processing carried out in the capacity of data controller, the following information must be available:

- a) the name and contact details of the data controller and any joint data controllers and, where applicable, of the representative of the data controller and of the data protection officer;
- b) the purposes of the processing;
- c) a description of the categories of data subjects and of the categories of personal data;
- d) the categories of recipients to whom the personal data have been or will be disclosed, including recipients in third countries or international organizations;

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- e) where applicable, transfers of personal data to a third country or an international organization, including the mention of that third country or international organization and, in the case of transfers referred to in Article 49.1, second paragraph of the GDPR, the documents regarding appropriate safeguards;
- f) if possible, the intended timeframes within which the different categories of data must be deleted;
- g) if possible, a general description of the technical and organizational security measures as referred to in Article 32.1 of the GDPR.

81. The Dispute Chamber establishes that the respondent provides a listing in its register of processing activities for:

- The categories of data subjects (Article 30.1.c) GDPR), namely residents, non-residents, internal staff, external staff, children.
- The categories of personal data (Article 30.1.c) GDPR), namely on the one hand basic data such as first and last name, address details (street, house number, box, municipality, country), telephone number, identification codes (national register number), birth data (date and place of birth), vehicle data, login data, and sensitive data such as health data, judicial data.

82. The Dispute Chamber – referring to previous decisions¹⁴ – must rule on whether Article 30.1.c) GDPR requires a description of the categories of personal data and the categories of data subjects to

be provided in the register of processing activities, or whether a listing suffices.

83. The Dispute Chamber establishes that Article 30.1.c) GDPR requires that a description of the categories of data subjects and the categories of personal data must be included in the register of processing activities.

84. The Dispute Chamber reminds that the purpose of the register of processing activities is to effectively apply the obligations contained in the GDPR. It is essential that the data controller (and the processors) have an overview of the processing of personal data they carry out. This register is primarily a tool to assist the data controller in complying with the GDPR for the various data processing activities they perform, as the register makes the main characteristics of these activities visible. The Dispute Chamber is of the opinion that this processing register is an essential instrument in the context of the aforementioned accountability obligation (Article 5, paragraph 2, and Article 24 GDPR) and that this register underlies all obligations imposed on the data controller by the GDPR.

85. The Dispute Chamber establishes that neither the text of the GDPR nor the objectives of the GDPR require that more than a listing of the categories of personal data and the categories of data subjects be included in the register of processing activities, and that a more detailed description would therefore not be necessary.

86. Regarding the categories of recipients, the Dispute Chamber refers to a recommendation from the Commission for the Protection of Privacy¹⁵ and the doctrine¹⁶ which outlines that while it is not necessary to mention the individual recipients of the data, they can be grouped by category of recipients. Mutatis mutandis, this assertion can also be applied to the categories of personal data and data subjects.

87. However, the Dispute Chamber points out that the filling out of the register of processing activities must always be evaluated on a case-by-case basis to determine whether the description or listing included therein is sufficiently clear and concrete.

88. In the present case, the Dispute Chamber establishes that the listings included in the register of processing activities were sufficiently concrete. According to the Dispute Chamber, there can be little doubt about the meaning of the elements listed above in the context of the processing activities mentioned in the register of processing activities.

89. Regarding the second finding of the Inspection Service concerning the currency of the register of processing activities, the Dispute Chamber points out that the register of processing activities must also be updated in accordance with the development and evolution of the activities of the relevant company or organization. If the data controller initiates a new processing activity or modifies an existing processing activity, the register of processing activities must be adjusted accordingly.

90. Since the period between the export of the register of processing activities and its submission is limited to just under 3 weeks, and since there are no elements indicating that the register of processing activities would not have been current, the Dispute Chamber is of the opinion that no infringement has been demonstrated.

15 Available at:

<https://www.gegevensbeschermingsautoriteit.be/publications/aanbeveling-nr.-06-2017.pdf>

16 W. Kotschy, "Article 30: records of processing activities", in Ch. Kuner The EU General Data Protection Regulation (GDPR), a commentary, 2020, p. 621.

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91.

Consequently, the Dispute Chamber concludes that there is no infringement of Article 30.1 GDPR.

III. Sanctions

92.

Based on the documents in the file, the Dispute Chamber finds that there are multiple infringements of the GDPR. Firstly, the infringement of Articles 5.1(f), 32.1 and 32.2 in conjunction with Articles 5.2, 24.1, and 25.1 GDPR; secondly, those of Articles 35.1, 35.2, 35.3, and 35.7 GDPR; and finally, those of Articles 38.1 and 39.1 GDPR.

93. Having the necessary processes in place to achieve and demonstrate compliance with the GDPR

is one of the fundamental principles of the GDPR. The data protection impact assessment is an important accountability tool because it not only helps data controllers to comply with the requirements of the GDPR but also demonstrates that appropriate measures have been taken to ensure compliance with the GDPR. The data protection officer also plays a crucial role in data protection at a data controller.

94. The Dispute Chamber is of the opinion that there are sufficient elements to impose a reprimand, which constitutes a light sanction and suffices in light of the infringements of the GDPR established in this file. In determining the sanction, the Dispute Chamber takes into account the fact that the respondent received (incorrect) advice regarding its qualification as a data controller but, after internal analysis, took the necessary steps to comply with its obligations as prescribed by the GDPR. The respondent has already rectified the infringements and provides evidence thereof. Furthermore, the Dispute Chamber points out that it is not authorized to impose an administrative fine on public authorities, in accordance with Article 221, § 2 of the Data Protection Act.

95. The Dispute Chamber proceeds to a dismissal regarding the other grievances and findings of the Inspection Service because it cannot conclude, based on the facts and the documents in the file, that there are infringements of the GDPR in this regard. These grievances and findings of the Inspection Service are therefore considered manifestly unfounded within the meaning of Article 57, paragraph 4 of the GDPR.

17 Act of July 30, 2018, on the protection of natural persons with regard to the processing of personal data, B.S., September 5, 2018.

18 See point 3.A.2 of the Dismissal Policy of the Dispute Chamber, dated June 18, 2021, available at <https://www.gegevensbeschermingsautoriteit.be/publications/sepotbeleid-van-de-geschillenkamer.pdf>.

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IV. Publication of the decision

96. Given the importance of transparency regarding the decision-making of the Dispute Chamber, this decision will be published on the website of the Data Protection Authority, with the identification details of the respondent mentioned, considering the inevitable re-identification of the respondent in the case of pseudonymization.

Pursuant to Article 108, § 1 of the WOG, an appeal against this decision can be lodged with the Market Court (Court of Appeal Brussels) within thirty days from the notification, with the Data Protection Authority as the respondent.

Such an appeal can be lodged by means of a statement of opposition that must contain the mentions listed in Article 1034ter of the Code of Civil Procedure. The statement of opposition must be submitted to the registry of the Market Court.

19 The statement must mention under penalty of nullity:

1° the day, month, and year;

2° the name, first name, residence of the applicant and, where applicable, their capacity and their national register or company number;

3° the name, first name, residence and, where applicable, the capacity of the person to be summoned;

4° the subject and a brief summary of the grounds of the claim;

5° the judge before whom the claim is brought;

6° the signature of the applicant or their lawyer.

FOR THESE REASONS,

the Dispute Chamber of the Data Protection Authority decides, after deliberation, to:

- formulate a reprimand against the respondent based on Article 100, §1, 5° WOG regarding:

o the infringement of Articles 5.1(f), 32.1 and 32.2 in conjunction with Articles 5.2, 24.1, and 25.1 GDPR;

o the infringement of Articles 35.1, 35.2, 35.3, and 35.7 GDPR;

o the infringement of Articles 38.1 and 39.1 GDPR;

- dismiss all other findings based on Article 100, §1, 1° WOG.

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in accordance with Article 1034quinquies of the Code of Civil Procedure, or via the e-Deposit information system of Justice (Article 32ter of the Code of Civil Procedure).

(get). Hielke HIJMANS

Chairman of the Dispute Chamber

20 The statement with its annex is sent by registered mail to the clerk of the court or filed at the registry in as many copies as there are parties involved.